

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO**

Civil Action No. 11-cv-01765-REB-BNB

YAO-HUNG HUANG, and
BIG TIME AUTO PARTS MANUFACTURING, INC., a Taiwan corporation,

Plaintiffs,

v.

MARKLYN GROUP, INC., d/b/a ALPENA, a Canadian corporation,

Defendant.

FINAL JUDGMENT

This action was tried before a jury of nine sworn to try the issues presented with United States District Judge Robert E. Blackburn presiding, and the jury has rendered a verdict. In accordance with the verdict of the jury and the orders filed during pendency of this case, and pursuant to Fed. R. Civ. P. 58(a), the following findings of the jury and Final Judgment are entered:

1. The jury found in favor of the plaintiffs on the claim of infringement of the '780 Patent as to the defendant's "The Alpena Head 'N' Grill" product, but found in favor of the defendant on its affirmative defense of invalidity of the patent due to anticipation; and
2. The jury found in favor of the defendant on the claim for willful infringement.

THEREFORE, IT IS ORDERED as follows:

1. That judgment is **ENTERED** for the defendant, MARKLYN GROUP, INC. , against the plaintiffs, YAO-HUNG HUANG, and BIG TIME AUTO PARTS MANUFACTURING, INC, jointly and severally; and

2. That the defendant, MARKLYN GROUP, INC., is **AWARDED** its costs to be taxed by the clerk of the court in the time and manner required by Fed. R. Civ. P. 54(d)(1) and D.C.COLO.LCivR 54.1.

DATED at Denver, Colorado, this 18th day of August 2014.

FOR THE COURT:

Jeffrey P. Colwell, Clerk

By: s/Kathleen Finney
Kathleen Finney
Deputy Clerk

APPROVED BY THE COURT:



Robert E. Blackburn
United States District Judge